The children of the following different categories of people belong to the 'creamy layer' among the OBCs and thus will not get the quota benefit:

1. Persons holding constitutional posts like President, Vice-President, Judges of SC and HCs, Chairman and Members of UPSC and SPSCs, CEC, CAG and so on.

2. Group 'A' / Class I and Group 'B' / Class II Officers of the All India, Central and State Services; and Employees holding equivalent posts in PSUs, Banks, Insurance Organisations, Universities etc., and also in private employment.

3. Persons who are in the rank of colonel and above in the Army and equivalent posts in the Navy, the Air Force and the Paramilitary Forces.

4. Professionals like doctors, lawyers, engineers, artists, authors, consultants and so on.

5. Persons engaged in trade, business and industry.

6. People holding agricultural land above a certain limit and vacant land or buildings in urban areas.

7. Persons having gross annual income of more than ₹8 lakh or possessing wealth above the exemption limit. In 1993, when the "creamy layer" ceiling was introduced, it was ₹1 lakh. It was subsequently revised to ₹2.5 lakh in 2004, ₹4.5 lakh in 2008, ₹6 lakh in 2013 and ₹8 lakh in 2017.

Reservation for EWSs in Educational Institutions The above exception (d) was added by the 103rd Amendment Act of 2019. In order to give effect to this provision, the central government issued an order (in 2019) providing 10% reservation to the Economically Weaker Sections (EWSs) in admission to educational institutions. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing schemes of reservations for SCs, STs and OBCs. The eligibility criteria laid down in this regard is as follows:

1. Persons whose family has gross annual income below ₹8 lakh are to be identified as EWSs for the benefit of reservation. The income would include income from all sources i.e., salary, agriculture, business, profession etc. and it would be income for the financial year prior to the year of application.

2. Persons whose family owns or possesses any one of the following assets are to be excluded from being identified as EWSs, irrespective of the family income:

    1. 5 acres of Agricultural land and above.

    2. Residential flat of 1000 sq.ft. and above.

    3. Residential plot of 100 sq.yards and above in notified municipalities.

    4. Residential plot of 200 sq.yards and above in areas other than the notified municipalities.

3. The property held by a family in different locations or different places / cities would be clubbed while applying the land or property holding test to determine EWS status.